



December 19th Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=YQwrcV2Cg94
Publication Date	2016-12-26T21:21:53Z
Target Category	delaware_county

Notice: This report is provided by the [Muncie Policy Memo](#) as a public service. This summary is generated automatically using artificial intelligence from public video transcripts, both of which are prone to error. The report is intended to provide an overview of meeting business and an aid to accessing detailed information from the video recording. When accuracy is critical, please refer to the official video recording or approved minutes.

Delaware County Commissioners Meeting Report

Meeting Date: December 19, 2016

Body: Delaware County Board of Commissioners

1. Pre-Meeting Hearings & Committee Work Sessions

No statutory public hearings or committee work sessions were held immediately prior to the regular meeting call to order.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the commissioners' meeting to order at approximately 9:00 AM on December 19, 2016 [00:00:07](#).
- **Attendance:**
 - Present: Mr. King (President), Mr. Henry, and Mr. Reagan [00:00:37](#).
 - Absent: None explicitly noted.
 - Presiding Officer: Mr. King (President).

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance [00:00:11](#).

- **Approval of Minutes:**
 - Minutes from the December 5, 2016 meeting were presented.
 - **Action & Vote Disposition:** Approved by Voice Vote [00:05:42](#).
 - **Board Appointments:**
 - *Item:* Filling a vacancy on the drainage board resulting from the passing of long-time member Mr. White [00:06:14](#).
 - *Nominee:* Dick McIntyre [00:06:27](#).
 - **Action & Vote Disposition:** Approved by Voice Vote [00:06:40](#).
-

4. Substantive Business & Board Action

- [00:00:49](#) **Petition to Vacate a Public Street (Marlon Harris / Harris Addition)**
 - **Sponsor / Presenter:** William Hughes (Legal counsel representing petitioner Marlon Harris) [00:01:00](#).
 - **Deliberation Summary:** Petitioner requested the vacation of a 25-foot dedicated east-west stub street in the Harris Addition (Liberty Township) to resolve a minor house encroachment on Lot 28. Following a Plan Commission recommendation noting that vacating the entire 25 feet would land-lock adjacent Lot 30, the request was amended to vacate only the south 12.5 feet of the right-of-way, beginning 25 feet east of Northwood Drive [00:01:10](#).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Public hearing closed by motion [00:05:18](#). Introduction of revised ordinance handled under Section 4 ordinances.
- [00:25:23](#) **Delaware County Mental Health Service / Sheriff's Department Agreement**
 - **Sponsor / Presenter:** County Sheriff / Dr. Hatfield.
 - **Deliberation Summary:** Renewal and increase of the professional services agreement with Dr. Hatfield for mental health evaluations and services for jail staff, corrections officers, and reserves (previously approved by the County Council) [00:25:54](#). Noted approximately \$40,000 in savings from pre-employment evaluations and introduced new staff wellness groups and children/family counseling for incarcerated individuals [00:27:00](#).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote [00:28:44](#).
- [00:29:02](#) **Delaware County Community Corrections VLC Funding Contract**
 - **Sponsor / Presenter:** Michelle Castle (Director of Delaware County Community Corrections) [00:29:20](#).
 - **Deliberation Summary:** Presented a transition to a new electronic contract and grant portal system managed by the state, outlining procedures for electronic signatures and time-sensitive return windows [00:29:32](#).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Informational presentation; no formal vote required.

- **00:32:04 General Service Agreement for Triad**
 - **Sponsor / Presenter:** Commissioners / John Brooke.
 - **Deliberation Summary:** Proposed tabling the general service agreement based on suggested revisions from John Brooke [00:32:07](#).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Tabled by Voice Vote [00:32:20](#).
- **00:32:26 INDOT LPA Coordination Contract Supplement No. 1 (EDS #A249-10-32072)**
 - **Sponsor / Presenter:** County Engineer / Commissioners.
 - **Deliberation Summary:** INDOT requested a contract modification changing the previous October authorization for County Road 419 East over the Cardinal Greenway into a formal supplement [00:32:51](#). The bridge replacement project (slated for August letting at an estimated \$800,000) will remove load restrictions and replace the narrow 3-ton bridge with a grade-crossing/tunnel structure allowing two-way traffic [00:33:52](#).
 - **Item-Specific Public Input:** Commissioners noted receiving calls from farmers and residents regarding load restrictions and the bridge closure duration.
 - **Action & Vote Disposition:** Approved by Voice Vote [00:33:28](#).
- **00:36:23 CHA Rail Spur Right-of-Way Agreement**
 - **Sponsor / Presenter:** Brad Bookout (Delaware County Economic Development) / Charlie Starling (CHA Engineering) [00:36:29](#).
 - **Deliberation Summary:** Agreement covers right-of-way acquisition services for the rail spur loading dock project, representing an estimated six months of work and a "not to exceed" increase of \$17,650 on the original contract [00:36:51](#).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote [00:37:35](#).
- **00:37:48 Economic Development Services Agreements**
 - **Sponsor / Presenter:** Brad Bookout [00:37:51](#).
 - **Deliberation Summary:** Renewal of annual economic development services agreements with Augusta Consulting for both Delaware County and the Delaware County Redevelopment Commission for a 24-month term [00:37:54](#).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote [00:38:45](#).
- **00:38:51 Ordinance No. 2016-020: Vacation of a Certain Street**
 - **Sponsor / Presenter:** Legal Counsel.
 - **Deliberation Summary:** First reading of the ordinance to vacate the southern 12.5 feet of the right-of-way in the Harris Addition (as reviewed in the public hearing) [00:38:59](#).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved for first reading by Voice Vote [00:39:07](#).

- **00:39:28 Ordinance No. 2016-021: Repealing Ordinance 2007-007 (Airport Authority Board Size)**
 - **Sponsor / Presenter:** Commissioners / Legal Counsel.
 - **Deliberation Summary:** Ordinance introduced to repeal Ordinance 2007-007, reducing the size of the Court of Aviation Authority board from five members back to four to reduce the size of government **00:39:31**.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Introduced; passed by Voice Vote **00:40:04**. *(Note: Roll call recorded Mr. Reagan voting "No" and Mr. Henry/Mr. King voting "Yes" 00:40:09).*
- **00:40:27 Resolution No. 2016-048: Transfer Property to Muncie Sanitary District**
 - **Sponsor / Presenter:** Commissioners / Austin Schmaltz **00:40:51**.
 - **Deliberation Summary:** Resolution concerning the transfer of a parcel of property to the Muncie Sanitary District **00:40:27**. Discussion revealed discrepancies regarding the property's location and correct street address identified by surveyors **00:41:15**.
 - **Item-Specific Public Input:** Austin Schmaltz (3410 West Ox Ridge Road) spoke regarding the property location and address ambiguities **00:40:51**.
 - **Action & Vote Disposition:** Tabled by Voice Vote pending address corrections **00:44:05**.
- **00:45:00 Legal Services Contract (A.J. Munguia / Ambuehl Gruber)**
 - **Sponsor / Presenter:** County Attorney.
 - **Deliberation Summary:** Request for approval of an attorney services contract with Ambuehl Gruber to assist with complicated legal matters **00:45:10**.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote **00:45:52**.
- **00:46:02 Delaware County Regional Wastewater District Petition & Rate Hearing**
 - **Sponsor / Presenter:** County Attorney.
 - **Deliberation Summary:** The county attorney verified that a petition concerning rates for the Delaware County Regional Wastewater District contained at least 50 valid signatures from district residents, meeting statutory filing requirements **00:46:05**.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Petition officially recognized as filed; public hearing scheduled for January 3, 2017, at 2:30 PM in the commissioners' courtroom, alongside an authorized audit of the district's books **00:46:49**. Approved by Voice Vote **00:47:30**.

5. Open Public Comment / Citizen Forum

- [00:40:51](#) **Austin Schmaltz** (addressing item on Resolution 2016-048): Spoke regarding property location discrepancies and address verification for the Muncie Sanitary District property transfer [00:40:51](#).
-

6. Administrative Updates & Adjournment

- **Staff & Board Announcements / Discussions:**
 - **Greenway Presentation:** Michael Papa (Hoosier Environmental Council) presented an extensive overview of the proposed **Mounts Greenway** project<U+2014>a 13-to-17-mile riverside conservation, trail, and economic development corridor connecting Anderson and Muncie along the West Fork White River<U+2014>highlighting economic modeling, tourism benefits, and regional funding precedents [00:07:43](#). Commissioners expressed strong support and noted plans to draft a supportive resolution [00:24:20](#).
 - **Insurance Benefits Discussion:** Commissioners addressed employee concerns regarding county health insurance plans, clarifying that plan parameters are dictated by County Council funding allocations, while emphasizing support for emergency personnel and available employee assistance channels [00:48:03](#).
 - **Clerk's Report:** Monthly report for the Circuit Court (November 2016) acknowledged [00:53:27](#).
 - **Claims:** Payment of claims totaling \$4,365,014.69 presented and approved [00:53:40](#).
 - **Economic Development Recovery Inquiry:** Commissioner Walter inquired into exploring legal options to recoup \$150,000 previously disbursed to a developer who allegedly failed to fulfill agreement terms [00:54:20](#).
 - **Adjournment:** Official meeting adjourned with holiday well-wishes at approximately 11:00 AM [00:55:26](#).
-